



File No.: EXP202309338

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On June 27, 2023, a complaint was filed with the Spanish Agency for Data Protection against Ms. A.A.A. with NIF ***NIF.1 (hereinafter, the complained party).

The reasons for the complaint are as follows:

The complaining party states that the complained party has installed a video surveillance camera in the bar located in a Senior Center, which is operated by the complained party, without the camera being properly signposted with the required informative signs of the monitored area, nor has the center's workers been informed. An image of the camera's location is provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the complained party/ALIAS, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on July 18, 2023, as recorded in the acknowledgment of receipt in the file.

Although the notification was validly carried out by postal means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, an informational copy was sent by postal mail, which was duly notified on September 19, 2023.

No response has been received to this forwarding letter.

THIRD: On September 27, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed was admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following aspects:

On October 26, 2023, within the framework of the present investigation proceedings, the complained party was requested to provide the following information:

- Indicate the NIF number and the contact email of the person responsible for the video surveillance system.
- Indicate the number of cameras in the surveillance system, providing photographs of all these devices, as well as photographs of the monitor, mobile screen, or equivalent system used to view the images, in which the areas within the field of vision of the cameras can be seen. The cameras must not, under any circumstances, record or allow the viewing of adjacent land that is not owned by them, nor the interior of homes or any other private or reserved space, nor of the public road, except for the portion of the public road minimally necessary for the intended security purpose.
- Provide photographs of the sign or signs that warn of the existence of a monitored area, in which the information contained in the sign is clearly visible, as well as its location. It must be evidenced, through photographs, that the monitors displaying the images captured by the cameras are only accessible to authorized persons (they must not be visible to customers and unauthorized personnel of their establishment). In these photographs, the location of the monitors must be clearly visible. It must specify the measures taken to ensure that only authorized personnel access the images and recordings.
- If they have contracted with a security company for the installation, maintenance, and/or management of the video surveillance system, they must provide a copy of the contract signed with

the security company and, when possible, a technical report of the video surveillance system prepared by that company.

If the surveillance system records images, indicate the retention period for these.

- If the cameras are fake, provide the invoice, purchase receipt, or any other document that serves to prove that they are fake, or, failing that, provide a responsible declaration stating, under their responsibility, that the cameras are fake.

- If the cameras are not operational or have been removed and therefore do not allow for viewing or recording images, a responsible declaration may be provided.

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3/6

- Any other information that you consider relevant and that may serve to assess the adequacy of the video surveillance system to data protection regulations.

On 10/11/2023, a response was received from the party being claimed, stating that there are no surveillance cameras in the cafeteria of the Ávila II Senior Center.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Information to be provided when personal data is obtained from the data subject

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, pursuant to which:

"1. When personal data relating to a data subject is obtained from that data subject, the data controller shall provide the data subject with all the information indicated below at the time the data is obtained:

- a) the identity and contact details of the controller and, where applicable, of its representative;

- b) the contact details of the data protection officer, where applicable;

- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;

- d) when the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;

- e) the recipients or categories of recipients of the personal data, if any;

- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate or suitable safeguards and the means to obtain a copy of these or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the controller shall provide the data subject, at the time the personal data is obtained, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be stored or, if not possible, the criteria used to determine that period;

- b) the existence of the right to request from the controller access to personal data relating to the data subject, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;
- c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent prior to its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and has been informed of the possible consequences of not providing such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the controller intends to further process personal data for a purpose other than that for which the data were collected, it shall provide the data subject, prior to that further processing, with information on that other purpose and any other relevant information in accordance with paragraph 2. The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information."

III

Application of the principle of presumption of innocence

The principle of presumption of innocence prevents attributing an administrative infraction when there is no obtained and verified evidence of the facts that motivate the accusation or of the involvement of the alleged infringer in them.

Applying the principle "in dubio pro reo" in case of doubt regarding a specific and determined fact, which obliges, in any case, to resolve such doubt in the most favorable manner for the data subject.

5/6

The presumption of innocence must apply without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanctions, as the exercise of the *ius puniendi* in its various manifestations is conditioned by the evidence presented and by an adversarial procedure in which the parties can defend their own positions.

In this regard, the Constitutional Court in its Judgment 76/1990, dated 26/04, considers that the right to the presumption of innocence entails: "that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof lies with the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the results of the evidence presented, freely assessed by the sanctioning body, must result in an acquittal."

The presumption of innocence applies without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanction, whether criminal or administrative (TCo 13/1981), as the exercise of the sanctioning right in any of its manifestations is conditioned by the evidence presented and by an adversarial procedure in which the parties can defend their own positions.

According to this principle, no sanction can be imposed based on the culpability of the accused if there is no incriminating evidence that, in the assessment of the authorities or bodies called to resolve, destroys this presumption (TCo Auto 3-12-81).

In the present case, although the complaint presented contained indications from which it could initially be inferred that the respondent party had a surveillance camera lacking an informative sign, during the investigative proceedings, this Agency has been informed that there are no surveillance cameras in the cafeteria of the Ávila II Senior Center. This, combined with the lack of reliable documentation provided by the complainant, does not allow for the confirmation of the processing of personal data, and therefore, the informative sign is not necessary, as established by Article 13 of the GDPR.

IV

Conclusion

Therefore, based on the information provided in the previous paragraphs, no evidence has been obtained that substantiates the existence of an infringement within the jurisdiction of the Spanish

Agency for Data Protection.

In accordance with the above, the Director of the Spanish Agency for Data Protection RESOLVES:
FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to the respondent party and to the complainant.

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6/6

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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